

- Newsletter of December 3, 2024

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THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by

Prof. Pasquale Stanzione, president, Prof.

Ginevra Cerrina Feroni, vice president, Dr.

Agostino Ghiglia and Attorney Guido Scorza, members, and

Secretary General Fabio Mattei;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC (General Data Protection Regulation, hereinafter "Regulation");

HAVING REGARD to the Code regarding the protection of personal data (legislative decree of June 30, 2003, n. 196), as amended by legislative decree of August 10, 2018, n. 101, containing provisions for the adaptation of the national legislation to the aforementioned Regulation (hereinafter "Code");

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the Secretary General pursuant to Article 15 of the Regulation of the Guarantor n. 1/2000;

REPORTING Dr. Agostino Ghiglia;

PREMISE

1. ACTS RECEIVED BY THE AUTHORITY AND THE PRELIMINARY INVESTIGATION CONDUCTED

On March 31, 2023, the Authority initiated an investigation against Sky Italia S.r.l. (hereinafter "Sky" or the "Company"), through a cumulative request for information, made pursuant to Article 157 of the Code (ref. prot. n. 55105/23), useful for the evaluation of 275 reports received by the Guarantor

in the period from April 1, 2022, to March 28, 2023, concerning, for the most part, the subject of telemarketing. With the same note, the Company was requested to "provide a list of purchase proposals coming from its sales network that led to the activation of SKY services in the period from March 6, 2023, to March 13, 2023, inclusive, divided between private individuals and public establishments."

Regarding the aforementioned reports received by the Authority, the Company provided feedback with a note dated May 30, 2023, to which reference is made, communicating that it had contacted "only 95 of

the 275 interested parties involved, believing that, in these cases, the contact occurred lawfully.” This is because, excluding service communications made for “Debt Recovery” and “Material Recovery from the customer,” in some cases the interested parties would have been contacted based on the marketing consent given at the time of signing previous contracts with Sky and never revoked (“Outbound Teleselling” concerning the 29 lines related to customers, for which evidence has been provided); in other cases, however, the calls would have occurred following a request for callback from the interested party via promotional emails (so-called “Direct E-Mail Marketing,” briefly also “DEM”) or SMS, within the “Call Me Now” service, already subject to evaluation by the Authority in provision n. 322 of September 16, 2021.

Furthermore, the Company denied, among the reports in question, 179 calls that cannot be attributed to Sky, nor to its suppliers, due to the centralization of the Reitek platform, highlighting the compliance of the processing with the principles of privacy by design and by default. All the lines referred to in the 275 reports have been included in the so-called Black List of Sky as soon as the latter became aware of the will of the interested parties to oppose further processing for promotional purposes, and it has been recorded in the system the revocation of any consents possibly given previously. In this regard, the Company clarified that the Black List is also shared with Sky's suppliers, in order to avoid unwanted contacts.

With reference to the purchase proposals that led to the activation of Sky services in the considered period (sample week, from March 6 to March 13, 2023), the Company, on April 28, 2023, produced the relevant list and on June 29, 2023 - following a specific request from the Office - clarified on which numbers, among those indicated, the individual contacts were made (called numbers).

1.1. Verification with the Public Registry of Oppositions

In order to carry out the necessary checks regarding the correctness of the aforementioned telemarketing activities, on September 27, 2023, the Office sent to the Ugo Bordoni Foundation, which manages the Public Registry of Oppositions, the aforementioned list of telephone numbers contacted by Sky in the context of telemarketing activities carried out in the period of February - March 2023. In this context, information was requested, pursuant to Article 157 of the Code, for each number, regarding any registration in the Public Registry of Oppositions (RPO) not later than January 31, 2023.

On October 2, 2023, the aforementioned Foundation sent its feedback, from the analysis of which it emerged that 644 telephone lines were registered in the Public Registry of Oppositions at the time of the promotional calls made by the Company, equivalent to just over 11% of the total number of

telephone contacts that led to the activation of the service in the reference period of February - March 2023 (n. 5,844 contacted numbers). January 2024.

Having contacted 644 telephone numbers in the context of telemarketing activities carried out during the period of February - March 2023, while the same numbers were registered with the RPO - and therefore under the opt-out mechanism established by current regulations - has resulted in the configurability of a violation of Article 130, paragraphs 3 and 3 bis, of the Code, concerning electronic communications, as well as, more generally, of Articles 5, paragraph 1, letter a) and 6, paragraph 1, letter a) of the Regulation, regarding the principle of lawfulness and the necessity of a legal basis of consent to legitimize the processing of the data in question for promotional purposes.

1.2. Processing related to the "NOW" service

In addition to the 275 reports subject to the two aforementioned requests for cumulative information, further complaints were received that the Authority addressed, during the investigative phase, individually. In particular, a report was received in which the receipt of an unwanted SMS from the "NOW TV!" service was complained about, in the absence of the consent of the data subject (file no. 263354).

In response to the request for information made by the Office on July 21, 2023, on August 8, 2023, the Company first represented that it had placed the data subject "on the blacklist on 10.08.2020 following the report of May 27, 2019, already analyzed by the Authority in the context of the sanctioning measure of 2021." In fact, consulting Sky's centralized systems, no outgoing calls to the data subject's number were recorded. The SMS, received on December 15, 2023, was sent to the complainant because he, as a customer of the NOW service, would have kept the related account active even after the expiration of subscriptions registered on 29/05/2018, 30/09/2021, and 14/08/2022. By maintaining the NOW account, the data subject received "an isolated service communication relating exclusively to the programming of NOW [...]"; therefore, the SMS would not have had commercial content but being a service communication "is not subject to the consent" of the data subjects, as indicated in the NOW information at point 3.1, letter a). In any case, the Company guaranteed that it had "immediately blocked the sending of communications of any kind, both via email and via SMS," obtaining confirmation from the data subject in this regard.

That said, the interpretation provided by Sky regarding the content deemed non-promotional of the complained SMS did not appear to be shareable. In fact, the same communication was sent to the data subject without any active subscription (the last order dates back to 14/08/2022) but contained an invitation to return to NOW (see below) and, therefore, to subscribe to its services.

It should be noted that a message formulated in this way cannot in any way be considered "service-related" since it does not pertain to any existing contractual agreement that would justify its sending in the absence of consent, but is configured, for all intents and purposes, as a communication aimed at promoting NOW services, with an invitation to activate a new subscription ("Reactivate with a click"). In the same privacy notice, referred to by the Company in its response of August 8, 2023, at point 3.1 letter a), it clearly emerged that the service purposes pursued by the data controller relate to the "execution of the contract or fulfillment of pre-contractual obligations" and for such purposes, the consent of the data subject is not required, precisely due to the reliance that arose following such an agreement. Furthermore, maintaining a NOW account does not mean expressing the willingness to receive promotional communications which, as such, are subject to the specific and informed consent of the data subject. Moreover, in this case, such consent was not expressed and in any case would have been overridden by the registration of the data subject's number in Sky's Black List, as stated by the Company itself.

Therefore - since the complained communication, with promotional content, occurred in the absence of specific consent from the data subject - a possible violation of Article 6, paragraph 1, letter a) of the Regulation as well as Article 130, paragraphs 1 and 2, of the Code was deemed to be configured.

2. THE CONTESTATION OF VIOLATIONS

Based on the above, the Authority deemed it necessary, on January 19, 2024, to contest to the Company the alleged violation of the following provisions: Articles 5, paragraph 1, letter a) and 6, paragraph 1, letter a) of the Regulation as well as Article 130, paragraphs 1, 2, 3, and 3 bis, of the Code.

With the same note (ref. prot. no. 0007004/24), the Authority therefore proceeded to communicate the initiation of the procedure for the possible adoption of the measures referred to in Article 58, paragraph 2, of the Regulation and for the possible application of the monetary sanctions referred to in Article 83, paragraph 5, of the Regulation.

3. SKY'S DEFENSE

In the defense memorandum submitted on February 19, 2024, Sky requested the dismissal of the procedure “for exceeding the 120-day period provided for its conclusion” as well as “for the unfoundedness of the contested allegations, or in the alternative [requested to] issue a mere warning or adopt a prescriptive measure [...] without the imposition of monetary sanctions.” Furthermore, on April 4, 2024, the Company, in addition to the aforementioned defense writings, produced evidence “on the status of privacy consents in relation to some teleselling campaigns carried out [...] on customers” that emerged from further verification activity that Sky had reserved in the memorandum of January 19, 2024.

February 2024.

3.1. Terms of the Administrative Procedure

Sky has preliminarily highlighted the failure to comply with the deadline for the conclusion of the procedure initiated by the Authority with the aforementioned notice of contestation dated January 19, 2024 (ref. prot. no. 0007004/24). In particular, the Authority's sanctioning power would have expired after the 120-day period for the notification of the violation, pursuant to Article 166, paragraph 5, of the Code, with the starting date (*dies a quo*) being identified, according to Sky, as the date of the response to the Garante's requests for information. In this regard, considering Sky's response of May 30, 2023, the 120-day period would have expired on October 28, 2023, or December 29, 2023, if one were to consider the Company's response of August 8, 2023, to the request for information related to the complaint processed individually and included in the notice of contestation.

3.2. Numbers Registered in the Public Oppositions Register and Affected by the Company's Promotional Contacts

The Company specified that of the 644 telephone numbers registered in the Public Oppositions Register and contacted by Sky during the telemarketing activity carried out in the period of February - March 2023, 99 numbers were found to be duplicates; therefore, “the actual number of cases to be verified corresponds to 545.”

Regarding the 545 numbers contacted, Sky represented that “453 are attributable to individuals who, at the time of the telephone contact, were already Sky customers ([...] “Group A”), while 92 are prospect numbers, that is, potential customers interested in the services and products offered by Sky ([...] “Group B”).”

3.2.1. In relation to the numbers falling within Group A (n. 453 users), the Company represented, providing evidence, that “[...] 411 belong to customers who had expressed their consent to the processing of personal data for marketing purposes [indication “ok”], while in 42 cases corresponding to 42 numbers, the absence of consent is indicated by the wording “ko.” With the subsequent integration of April 4, 2024, Sky has, however, clarified that among the 411 consented users, there are 11 who were contacted in the absence of such legal basis but at the explicit request of the customer through telephone (inbound calls) or via the “Call Me Back” service available on the Company's website or, again, following interactions of the interested parties on the web.

Of the 42 contacted numbers registered to customers and not supported by explicit consent for marketing, Sky clarified the following:

- 22 numbers were contacted within the framework of the “Call Me Back” and “Call Me Now” services, which allow “[...] the customer to indicate their telephone number in order to plan a contact from Sky –

at their express request supported by explicit consent – for specific service needs and/or commercial information”;

- “2 numbers belong to customers who have given consent to receive promotional and commercial communications.” In particular, regarding these numbers, identified with the wording “ko” for the absence of original consent for marketing, the Company has proven that such authorization was subsequently provided by the interested parties, as per the attached personal data sheet;
- “8 numbers are attributable to customers who contacted Sky (inbound)” and who were subsequently contacted by the Company (outbound) “within an extremely close time frame (on average 1-4 minutes) [...] to remedy technical line issues and interruptions of the conversation originally made by the customer”;
- “1 number was contacted by Sky in outbound for service reasons related to the receipt, via PEC, of a cancellation request of which it was not possible to ascertain the origin [...] of the actual contract holder and this required a verification of the sender's identity”;
- “2 numbers were contacted by Sky within the so-called courtesy retention, that is, administrative and service calls” for which “the customer's consent is not required”;
- 6 numbers were contacted by the Company following a request for technical support from the customer in their reserved area (so-called Web Self Care);
- “1 number was contacted in outbound by Sky for service purposes, as a result of which the customer upgraded their package [...]”.

3.2.2. Regarding the 92 prospect numbers contacted by Sky, as per Group B, the Company represented, providing evidence, the following:

- a) “59 numbers are attributable to former Sky customers who have made technological migrations, that is, contractual changes related to the device used for accessing the service. [...] Such migrations resulted in the termination of the previous contract and the opening of a new contract. [...] these customers appear in Sky's systems as “new customers” (so-called prospects), although they were actually already Sky customers. These are numbers that, in some cases, were contacted following the customer's request through the Call Me Back and Call Me Now services and, in other cases, made an inbound call to Sky; in 2 cases, they are customers who had given consent to outbound calls [...]”. The Company has provided the details of the verification carried out on the 59 numbers;
- b) 3 contacted numbers are attributable to prospects who filled out the “Call Me Now” forms, regarding Sky offers, present on the Facebook social channel: in particular, the user views a sponsored post containing a Sky offer on Meta or Instagram, clicking which initiates, through various steps and confirmation requests, the procedure for being contacted again by the Company;
- c) “1 number is attributable to a customer who has been contacted by Sky following numerous interactions in the Web Self Care Area [...]”;
- d) “17 numbers are attributable to contacts acquired from suppliers XX and XX who, according to a procedure now known to the Authority [...] are responsible for Sky tasked with sending SMS to prospects who are part of contact databases relating to individuals who have expressed their consent to third-party marketing [...]”;
- e) “1 number is attributable to an individual contacted for technical reasons related to the prize operation conducted by XX [...]”;
- f) “9 numbers are attributable to individuals who, through comparator XX, have been able to evaluate the offer of products and services from various suppliers, including Sky [...] and [...] have requested to receive advice in this regard. [...] XX, in the event that the request for advice results in the interested party's desire to subscribe to a Sky subscription, as the responsible party [...], takes care of finalizing the subscription process. [...]”;
- g) “1 number belongs to a former Sky customer whose previous contract has been canceled. [...] the customer made an inbound call to Sky and approximately 30 minutes later was called back by Sky to finalize the contract [...]”;
- h) “1 number belongs to an individual who requested to be called through the “Sky Prospect” webpage of the site sky.it [...] where the Call Me Now information is provided and it is required, as a prerequisite for continuation, to select the acknowledgment flag of the information or the mandatory reading with

scrolling of the full text of the information and subsequent selection of the “Ok, I have read” button. Once the acknowledgment flag or button is selected, the webpage shows the contact form where there is a freely selectable button “CONTACT ME”/“CONFIRM” preceded by the specific indication: “I consent to being contacted for information” [...].

3.2.3. With reference to point 1.2. of this provision, relating to the receipt of an unwanted SMS from the NOW service in the absence of the interested party's consent, the Company reiterated the arguments made during the investigation, confirming the non-commercial nature of the communication. In particular, it stated that it sent a service communication concerning Sky programming and, as such, is not subject to the prior consent of the interested party. This sending, according to the Company, was connected to the failure to delete the interested party's account, already a Sky customer, from the NOW platform; in any case, Sky provided reassurances regarding the timely registration of the opposition expressed by the interested party.

4. LEGAL ASSESSMENTS OF THE AUTHORITY

With reference to the factual profiles highlighted above, also based on the statements of the Company, for which the declarant is responsible pursuant to Article 168 of the Code, the following legal assessments are made.

4.1. On the terms of the administrative procedure

First, it is necessary to provide a complete and precise chronological reconstruction of the investigative activity against Sky. The Company's response to the Office's request for information dated March 31, 2023, was provided at two distinct times: on May 30, 2023 (regarding the 275 reports received by the Guarantor) and with a note dated April 28, 2023, which produced the list of numbers involved in the activation of Sky services during the period March 6 – March 13, 2023. Regarding this list, the Company, following a specific request from the Office, provided further feedback on June 29, 2023, clarifying which numbers, among those indicated, had individual contacts made. The Authority then involved the Ugo Bordoni Foundation (so-called FUB) to verify the registration of the aforementioned numbers in the Public Register of Oppositions (so-called RPO) during the period of Sky contacts. The feedback from FUB, received on October 2, 2023, allowed for the acquisition of necessary information for a thorough assessment of the treatments that were the subject of the dispute, pursuant to Article 166, paragraph 5, of the Code, notified on January 19, 2024.

On this point, it should be noted that established case law regarding the ascertainment of administrative offenses refutes the Company's reconstruction based on a logic of mere formal counting of the days following the receipt of feedback to the various requests for information, identifying Sky, precisely, in the acquisition of such feedback as the constitutive element of the ascertainment activity and, therefore, the *dies a quo*. In general, regarding the activity of independent administrative authorities, the Supreme Court (Cass. Civ. Sez. 2, n. 31635/2018), reiterating arguments previously expressed, has reaffirmed that “the activity of ascertaining the offense, in relation to which to place the *dies a quo* of the term for the notification of the violation details, cannot coincide with the moment when the “fact” is acquired in its materiality, but must be understood as inclusive of the time necessary to evaluate the acquired data and pertaining to the elements (objective and subjective) of the infringement and, therefore, the final deliberation phase related to the complexity, in this case, of the investigations aimed at verifying the existence of the infringement itself and at acquiring full knowledge of the unlawful conduct, in order to assess its significance for the correct formulation of the charge” (see Cass. no. 13050/2014; Cass. no. 1043/2015 and Cass. no. 770/2017). To confirm the established position of the Supreme Court, recent rulings from the Council of State should also be highlighted (e.g., Section VI, no. 4020, of May 24, 2021) where it is noted that “in the matter of administrative sanctions, what is relevant for the purposes of respecting the principle of immediacy of the charge [...] is not the news of the sanctionable fact in its materiality, but the acquisition of full knowledge of the unlawful conduct, implying the verification of the existence and significance of the infringement and its effects; so that, on the one hand, the term for contesting the infringement does not start from its commission, but from the completion of the verification activity of all the elements of the unlawful act, taking into account also the time necessary for the administration to adequately evaluate and weigh the acquired elements and the preliminary acts for the factual identification of the elements of administrative responsibility, and on the other hand, the term for the

conclusion of the sanctioning procedure begins to run only from the moment in which the administrative activity aimed at verifying the existence of the infringement is completed – or should reasonably have been completed, also in relation to the complexity of the case – including the investigations aimed at verifying the existence of all the subjective and objective elements of the infringement itself.”

It follows that, in this case, full knowledge of the unlawful conduct could only pass through the aforementioned dialogue with the FUB since the registration of the numbers with the RPO and the consultation of the same must be considered as preconditions for being able to correctly carry out telemarketing activities and, therefore, necessary evaluation elements for a more complete instruction of the procedure.

In conclusion, the procedure initiated and conducted by the Authority must be considered fully compliant with the relevant regulations since, based on Internal Regulation no. 2/2019, the charge was notified within 120 days from the date of the ascertainment of the violations (see point 2, Table B attached to Regulation no. 2/2019, cited) to be identified at least on October 2, 2023 (date of the response by the FUB to the request for information regarding the registration with the RPO of the contacted numbers): the communication to initiate the procedure was notified to Sky on January 19, 2024, and therefore, eleven days before the expiration of the 120-day term as identified above.

4.2. On the legality of the contacts made with the prospect numbers

Regarding the 92 prospect numbers of Group B, as mentioned in point 3.2.2. of this provision, some critical issues have emerged.

- With reference to point c), from the analysis of the call history directed to the client's user (which Sky claims occurred after the user made inbound interactions on the web – in the Web Self Care area – see attachment 16 of the defense memorandum of February 19, 2024), it emerged, contrary to what the Company stated, that the phone contacts were made before the aforementioned user operations in their personal web area. In relation to these contacts, Sky has not provided any justification; therefore, the prerequisites for the violation of personal data processing in the absence of the consent of the interested party and during the registration with the RPO (as per the list provided by the FUB on October 2, 2023) must be considered to exist. Therefore, the violation of the contested provisions (Articles 5, paragraph 1, letter a; 6, paragraph 1, letter a of the Regulation as well as Article 130, paragraphs 3 and 3 bis, of the Code) must be confirmed.

- With reference to point d) concerning the 17 prospect numbers contacted by Sky, the Company clarified that these numbers were acquired from XX and XX (hereinafter "suppliers") based on consent for the communication of data to third parties granted by the interested parties to an independent holder, manager of websites visited by the users themselves; the aforementioned suppliers, appointed by Sky as data processors, would have taken care of sending SMS containing the request to users for a telephone callback from Sky if interested in offers or products from the Company. Regarding these treatments, Sky has produced documentation containing, for each of the websites used by the original holders to collect the personal data of the interested parties, the web pages viewed by the user, the privacy notice, and the related consents (see - attachment 17 "Summary Excel Leads" and 17 bis "Leads Folder") – providing, in addition to this, also the policies of the suppliers who would have acted on behalf of Sky in sending the callback SMS (see communication of March 25, 2024).

On this point, it should be noted, first of all, that the Guarantor, with provision no. 332 of September 16, 2021 (in www.gpdp.it, doc. web no. 9706389), intended to primarily regulate the relationships between Sky and the aforementioned suppliers, identifying the latter as data processors and ordering the Company-holder, pursuant to Article 58, paragraph 2, letter d) of the Regulation, to proceed with the relevant designation.

With this provision, however, it is deemed necessary to analyze the obligations and the related responsibilities regarding information and consent attributable to the Company, which, as the holder, is required to maintain adequate and constant control over all the "links" in the processing chain from the very first phase of the promotional campaign - consisting of the selection of the data to be used,

the verification of their lawfulness, and the documented proof of overall assessments regarding the characteristics of the processing - up to the signing of the contract with the data subject (from contact to contract).

That being duly clarified, several specific critical issues have emerged from the documentation on record. Sky produced, attached to the defense memorandum of February 19, 2024, screenshots of the websites that users would have accessed, providing their personal data and consenting to their processing for commercial purposes. These websites are attributable to independent data controllers who, based on specific consent from the data subjects, would have provided the data, obtained through specific online forms, to third parties (in this case, to Sky's managers) for promotional purposes.

With reference to some of these websites (see XX; XX; XX in attachment 17 bis "Leads Folder"), the produced screenshots - which, as mentioned, reproduce the web pages as viewed by the user, the online data collection form, the texts of the information notices, and the formulas for acquiring the asserted consents - do not appear to be sufficiently detailed as they lack a specific date. This does not allow for verification of whether the aforementioned websites and the texts of the information notices and consents produced in the defense memorandum were similar to those viewed by the data subject at the time of the online collection of their personal data through portals dedicated to prize competitions or offers. Therefore, regarding the numbers contacted via SMS by Sky's managers and acquired through the aforementioned websites (SMS1 – SMS4 – SMS8 – SMS11 – SMS12 – SMS13 – SMS16), it is not possible to overcome the described gaps found in the reconnaissance phase concerning the origin of the data and the conditions of lawfulness of the related processing.

Moreover, the Excel files containing the details of all the SMS sent and the consents allegedly granted to the original data controller for communication to third parties (in attachment 17bis_Leads Folder to the defense memorandum of February 19, 2024) do not appear suitable to certify the will of the data subjects. On this point, the Authority has repeatedly emphasized that the mere indication of the IP address, combined with the date and time of the user's registration on the website, does not constitute any proof of the expression of an unequivocal will by the data subjects (see provision no. 429 of December 15, 2022, web doc no. 9852290, point 3.3. "On the proof of the acquisition of consent for telemarketing activities and communication to third parties for direct marketing purposes"; provision no. 437 of October 26, 2017, web doc no. 7320903, point 3.3.; provision no. 413 of November 25, 2021, web doc no. 9737185, point 4.2.; at www.gpdp.it); this especially in the absence of further evidential support that allows for the positive validation of consent (in fact, the option of will expressed by the data subjects does not appear to be marked as "YES").

Furthermore, it should be noted that the Excel files in which the details of the asserted consents granted by the data subjects would have been recorded were found to be modifiable and, as such, unsuitable to unequivocally prove the will expressed by them regarding the processing of their personal data. Regarding the requirement of the immutability of the document thus formed, an essential element for fully certifying the expression of consent by the data subjects, reference is made to the provisions, applicable also to the private sector, contained in the Digital Administration Code (CAD - Legislative Decree 82/2005) as supplemented by the "Guidelines on the formation, management, and preservation of electronic documents" adopted by Agid in May 2021 (https://www.agid.gov.it/sites/agid/files/2024-05/linee_guida_sul_documento_informatico.pdf), according to which "the characteristics of immutability and integrity are determined by one or more of the following operations," including the "registration in the system logs of the outcome of the operation of forming the electronic document, including the application of measures to protect the integrity of databases and for the production and preservation of system logs; [as well as] the production of a static extraction of the data and its transfer to the preservation system" (see point 2.1.1. of the cited Guidelines - "Formation of the electronic document"). In this context, the documentation produced by Sky, as already represented, does not pertain to records directly extracted from the company's IT systems but consists of a mere transposition in Excel format of the data contained therein; consequently, this documentation cannot be evaluated on an evidential level as it lacks the

characteristics of objectivity, integrity, and immutability.

Therefore, in order to verify the consents and the information notices released at the time of data collection, the Office accessed the WayBack Machine - Internet Archive (web.archive.org), which preserves snapshots of the home pages of websites and their related structure even from earlier periods. These checks thus allowed for the visualization of some of the websites indicated by Sky at the time or in close proximity to the date of the alleged acquisition of consent. Following the investigations, several critical issues were ascertained. In particular:

1) with reference to the websites attributable to the company XX, based in Ireland, a single consent was found to have been acquired for the distinct marketing purposes of the data controller and for communication.

to third parties for their promotional activities (cit. "Agree to receive offers by email, phone, sms, postal from XX and other selected Partners with whom we will share your details" - website XX); furthermore, it emerged that registration on the site would involve the sending of promotional emails by the data controller (cit. "By registering and entering you agree to the terms and conditions of the privacy statement that govern how your information will be processed. You also consent to XX, XX, to sending you emails updating you on offers and prizes" - website XX) (see figure below).

It should be noted that registration on a site is configured as an autonomous processing activity compared to the promotional activity that the data controller intends to pursue. In the case at hand, registration on the site was proposed as a *de facto* synallagmatic performance, in exchange for granting consent to the processing of data for marketing purposes, merging into a single and indivisible formula the different contractual (participation in services offered by XX) and promotional purposes.

Conversely, as a result of the registration procedure on the XX portal, also attributable to XX, no express authorization for the processing of personal data was requested (see figure below);

2) with regard, instead, to the website XX, attributable to the company XX, based in London, it was established that at the end of the data registration for participation in the prize competition, two optional consents are requested from the user (1 - for communication to third parties for their marketing purposes; 2 - for sending commercial communications); however, the successful completion of the procedure appears to be conditional upon acceptance of the Competition Regulations and authorization for processing "[...] as indicated in the privacy notice." In the absence of such acceptance, it seems that it is not possible to proceed further and, therefore, to participate in the selection. Therefore, according to this approach, in the face of two specific consents for the distinct processing activities, one additional general consent is requested which, however, seems to encompass all of them and serves as a mandatory condition to be able to use the service, effectively determining a coercion of the will of the data subject (see figure below);

3) the aforementioned list provider XX (which would have provided the data of the holders of the numbers receiving SMS8, SMS12, SMS13, and SMS16) does not indicate in the privacy notice the contact details of the representative in the European Union (as the data controller is outside the EU), as required by Article 27 of the Regulation; nevertheless, Sky has nonetheless proceeded with the acquisition of the data despite the prohibition on the use of data similarly acquired in violation of the relevant regulations on the processing of personal data, as per Article 2-decies of the Code;

4) some of the numbers were contacted based on a consent obtained (and, as described, not adequately documented) a long time ago, and even prior to the full effectiveness of the Regulation (2016) without any documentation of checks aimed at assessing its suitability even after the change in the regulatory framework. For some of them, in fact, the collection can be traced back to almost 10 years before the contact by Sky. In this regard, it is necessary to highlight a more general phenomenon, according to which many reporters (also for other data controllers different from Sky) have pointed out the unawareness of the alleged registrations, some even denied by the data subjects themselves, especially when the relevant consents were provided many years ago. In light of this, it must be observed that, although the mere passage of time is not a sufficient parameter, in itself, to assess the suitability of the legal basis, consent to the processing of personal data for promotional

purposes, as the maximum expression of individual self-determination, must be considered valid, regardless of the time elapsed, until it is revoked by the data subject, provided that it was correctly obtained originally and that it is still valid in light of the applicable regulations at the time of processing as well as the retention periods established by the data controller and indicated in the notice, in compliance with Article 5, paragraph 1, letter e) of the Regulation (see provision no. 429 of December 15, 2022, web doc no. 9852290, point 3.3., cit.; provision no. 181 of October 15, 2020, web doc no. 9486485, point 3.1. “On the suitability of the consent obtained for sending promotional communications”; at www.gpdp.it). That said, the retention periods indicated in some of the notices produced were not defined as they referred generically only “to the time strictly necessary to fulfill the illustrated purposes” (see notices XX for the site <http://www....> and XX) or without any indication in this regard (as in the case of the website www... at XX). This results in a processing of personal data potentially capable of exerting its effects for an indefinite period, significantly compressing the control of the data subject over the information concerning them. In other words, if a consent, even for promotional purposes, expressed for an indefinite period (unless revoked) is free from defects, the retention of the related data should in any case be limited based on considerations regarding the reasonableness of the duration of the processing that the data controller should have clearly specified in the notice. Therefore, in the absence of adequate information on the duration of the processing and...

related data retention, the expression of will of the data subject is irreparably flawed.

In light of the above, it is deemed appropriate to confirm, for such promotional contacts, the responsibility of Sky in relation to the contested violations (Articles 5, paragraph 1 letter a; 6, paragraph 1 letter a, of the Regulation and Article 130, paragraphs 1 and 2, of the Code).

- With reference to points b), f), and h) - concerning the 13 accounts acquired through the “Call Me Now” service available on the social channel Facebook and on the website sky.it, as well as through the comparator XX - from the analysis of the documentation provided to support the collection of specific consent from the data subjects for Sky's telemarketing activities, the following critical issues have been identified.

One of the 3 accounts acquired through the “Call Me Now” service, available on the social channel Facebook, is reported to have activated the contact procedure in April 2023 (specifically on 20/04/2023), therefore after the period of February - March 2023 involved in the complained contacts which, consequently, occurred in the absence of an appropriate legal basis and while the number was registered with the RPO (as per the list provided by the FUB on October 2, 2023).

With reference, instead, to the documentary evidence concerning the 9 accounts acquired through the comparator XX portal, a verification carried out by the Office accessing the relevant website www... (owned by the same) revealed that to finalize the registration to the online form to obtain advice on the best Sky offers, it is required to authorize the processing of personal data “preparatory to the provision of the services described in Articles 2.1 and 2.2.” of the privacy notice, for which the distinct legal bases related to the contract are invoked, as per Article 6, paragraph 1, letter b) of the Regulation, and to the legitimate interest regulated by letter f) of the same article.

In particular, in point 2.2. of the aforementioned notice, it is clearly stated that “in order to pursue its legitimate interest [the holder XX may process the data] by sending periodic informative, commercial communications [...] via email or through direct telephone contact and/or SMS, without prejudice to the right of the data subjects to oppose the processing at any time.” According to this framework, therefore, promotional communications made via telephone or SMS can occur on the legal basis of the legitimate interest of the data controller. This is in contrast with the provisions contained in Article 130 of the Code, which allows contacts made through automated calling systems without the intervention of an operator only with the consent of the data subject or user (opt-in) or, in the case of calls with an operator, in the absence of an express refusal (opt-out) that can be exercised by registering the number with the Public Register of Oppositions. It is therefore evident that, with reference to electronic communication tools (such as telephone or SMS), other legal bases cannot be invoked, except for the cases of so-called “soft spam” referred to in Article 130, paragraph 4, of the Code, under which, upon

the occurrence of specific conditions, it is possible to send promotional communications for the direct sale of similar services, without the consent of the data subject, but exclusively through the email channel and provided that the data subject, adequately informed, does not refuse such use; the provision in question, of a special nature and derogatory to the general rule on consent, is not subject to extensive interpretation. Therefore, any promotional communication made outside of such conditions and using a channel other than email falls under the more general provisions of Article 130 of the Code, making it necessary to identify the appropriate legal basis of consent (see provision no. 9 of January 11, 2023, web doc no. 9861941, at www.gpdp.it).

Based on the above, the notice of XX provided to the data subjects is deemed inadequate as it invokes an incorrect legal basis for carrying out marketing activities via telephone operator or SMS. The presence in the notice of paragraphs dedicated to processing carried out for marketing purposes, including those of third parties, and profiling, for which consent is correctly indicated as a prerequisite for legality (see points 2.3, 2.4, 2.5), is irrelevant if, in the setup of the aforementioned online form, such consent is not requested freely and specifically.

The mandatory acceptance of the processing of personal data resulting from the described consultation procedure effectively leads to the acquisition of data for purposes related not only to the provision of the requested service but also to commercial initiatives that the holder may pursue via telephone or SMS, determining a coercion of the will of the data subject. Moreover, the inadequacy of the informational fulfillment is destined to negatively impact the expression of will of the data subject, which thus results flawed.

With reference to the account acquired through the “Call Me Now” service available on the website sky.it, there are no documented elements that allow for a correct definition of the methods and timing of the acquisition of personal data, as well as any authorization for contact. In fact, the documentation on the re-contact procedure, produced in relation to the mentioned account (see attachment 22 to the defense memorandum of February 19, 2024), cannot remedy this deficiency as it merely indicates the operational methods related to the promotional communications);

- with reference to point 2), pursuant to art. 58, par. 2, lett. f), of the Regulation, prohibit any further promotional communications in the absence of prior consent from the data subjects;
- pursuant to art. 58, par. 2, lett. d), of the Regulation, instruct the Company to adopt appropriate procedures to ensure compliance with the requirements regarding consent and information for any future promotional communications.

6. SANCTIONS

In light of the established violations, it is deemed necessary to impose a sanction on Sky, taking into account the gravity and duration of the infringements, as well as the number of affected data subjects. The specific amount of the fine will be determined in accordance with the provisions of the Regulation and the Code, ensuring that it is effective, proportionate, and dissuasive.

7. FINAL PROVISIONS

This decision will be communicated to Sky and published in accordance with the applicable regulations. The Company has the right to appeal this decision before the competent judicial authority within the terms established by law.

This document is issued in compliance with the applicable legal framework and reflects the findings of the investigation conducted by the Authority.

commercial communications), pursuant to Articles 6, 7, and 14 of the Regulation as well as Article 130 of the Code;

- pursuant to Article 58, paragraph 2, letter d) of the Regulation, to order the adoption of appropriate measures to contextualize the will of the data subject to be contacted by the Company through the “Call Me Now” procedure, recording in the systems the methods and timing of the acquisition of personal data, as well as any authorization for contact (Articles 5, paragraph 2 and 24 of the Regulation);

- with reference to point 2) to impose on Sky, pursuant to Article 58, paragraph 2, letter f) of the Regulation, the prohibition of any further processing for promotional purposes of data linked to accounts opened on the NOW platform in the absence of specific consent for marketing from the data subjects. It is also believed, with regard to the processing already carried out and for dissuasive purposes, that the conditions exist for the application of an administrative pecuniary sanction pursuant to Articles 58, paragraph 2, letter i), and 83, paragraph 5, of the Regulation.

6. ORDER FOR THE APPLICATION OF THE ADMINISTRATIVE PECUNIARY SANCTION

The violations indicated above require the adoption of an order for injunction, pursuant to Articles 166, paragraph 7, of the Code and 18 of Law No. 689/1981, for the application against Sky Italia S.r.l. of the administrative pecuniary sanction provided for by Article 83, paragraphs 3 and 5, of the Regulation (payment of an amount up to €20,000,000.00 or, for companies, up to 4% of the global annual turnover of the previous financial year, if higher).

For the determination of the amount of the sanction, which must “in any case [be] effective, proportionate and dissuasive” (Article 83, paragraph 1), it is necessary to take into account the elements indicated in Article 83, paragraph 2, of the Regulation.

The following circumstances must be considered in this specific case, under the aggravating factors:

- 1) the seriousness of the detected violations related to “systemic” conduct as they are rooted in corporate procedures, particularly regarding the absence of adequate sample checks on the numbers to be contacted provided by third parties, also through the data processors (responsible for sending the SMS for Sky's callback), as well as concerning promotional communications addressed to users linked to “NOW” accounts (Article 83, paragraph 2, letter a of the Regulation);
- 2) the negligent nature of the conduct since the Company's presence in the market for many years should have allowed it to acquire a sufficient background of experience and competence to adopt more compliant fundamental choices with the regulatory provisions, also in light of the sanctioning measure of which Sky was the recipient in 2021 (Article 83, paragraph 2, letter b of the Regulation).

As mitigating factors, it is considered necessary to take into account:

- 1) the timely inclusion in Sky's Black List of the numbers related to the 275 reports received by the Authority, already before the initiation of the procedure and as soon as the Company became aware of the opposition of the data subjects to further processing, simultaneously recording in the system the revocation of any consents that may have been previously granted (Article 83, paragraph 2, letter c of the Regulation);
- 2) the categories of personal data involved in the violation, which only concerned the personal and contact data of the data subjects (Article 83, paragraph 2, letter g of the Regulation);
- 3) the high degree of cooperation in the interaction with the supervisory Authority, making it easy, despite the size of the Company and the complexity of the processing, to carry out the investigation activities (Article 83, paragraph 2, letter f of the Regulation);
- 4) the circumstance that, in the previous sanctioning measure adopted by the Guarantor (No. 332 of September 16, 2021), Sky settled the dispute with a reduced payment, which determines, pursuant to Article 8-bis, paragraph 5, of Law No. 681/1989, the non-applicability of the aggravating factor referred to in Article 58, paragraph 2, letter e of the Regulation.

Based on the overall elements indicated above, applying the aforementioned principles of effectiveness, proportionality, and dissuasiveness referred to in Article 83, paragraph 1, of the Regulation, it is deemed appropriate to apply to Sky Italia S.r.l. the administrative sanction of payment of an amount of €842,062.00, equal to 1% of the maximum statutory sanction.

In this case, it is also considered that the accessory sanction of publication on the Guarantor's website of this provision should be applied, as provided for by Article 166, paragraph 7, of the Code and Article 16 of the Guarantor's Regulation No. 1/2019, taking into account the violation of consolidated principles in the Guarantor's provisions (see the free and specific consent for the different purposes of processing), as well as the high number of subjects potentially involved in the processing in question.

It is noted that, pursuant to Article 170 of the Code, anyone who, being obliged, does not comply with this prohibition on processing is punished with imprisonment from three months to two years and that, in case of non-compliance with the same provision, the sanction referred to in Article 83, paragraph 5, letter e) of the Regulation is also applied administratively.

Finally, the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Guarantor, apply for the annotation of the violations detected here in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter.

u) of the Regulation.

WHEREAS THE GUARANTOR

pursuant to Article 57, paragraph 1, letter f), of the Regulation, declares unlawful, in the terms set forth in the reasoning, the processing carried out by the company Sky Italia S.r.l., represented by its legal representative pro tempore, with registered office in Milan, Via Monte Penice 7, VAT number: 04619241005 and, as a result:

- pursuant to Article 58, paragraph 2, letter f), of the Regulation, with reference to paragraph 5, point 1), prohibits any further processing for commercial purposes in the absence of adequate checks on the compliance with information and consent requirements carried out towards the data subjects whose data have entered the Company's database, and without having consulted the Public Opposition Register prior to any promotional campaign;
- pursuant to Article 58, paragraph 2, letter d), of the Regulation, with reference to any future processing referred to in the aforementioned point 1), orders the Company to adopt suitable procedures aimed at constantly verifying, also through adequate random checks, that personal data are processed in full compliance with the provisions in this regard (prior acquisition of free, specific, unequivocal, documented, as well as informed consent from the data subjects for the sending of commercial communications), pursuant to Articles 6, 7, and 14 of the Regulation as well as Article 130 of the Code;
- pursuant to Article 58, paragraph 2, letter d) of the Regulation, orders to adopt adequate measures to contextualize the will of the data subject to be contacted by the Company through the "Call Me Now" procedure, recording in the systems the methods and timing of the acquisition of personal data, as well as any authorization for contact (Articles 5, paragraph 2 and 24 of the Regulation);
- pursuant to Article 58, paragraph 2, letter f) of the Regulation, with reference to point 2), imposes on Sky the prohibition of any further processing for promotional purposes of data linked to accounts opened on the NOW platform in the absence of specific consent for marketing from the data subjects;

- pursuant to Article 157 of the Code, orders the Company to communicate to the Authority, within 30 days from the notification of this provision, the initiatives undertaken in order to implement the imposed measures; any failure to comply with the provisions of this point may result in the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation.

ORDERS

pursuant to Article 58, paragraph 2, letter i), of the Regulation, Sky Italia S.r.l., represented by its legal representative, to pay the sum of euro 842,062.00 (eight hundred forty-two thousand sixty-two/00), as an administrative pecuniary sanction for the violations indicated in the reasoning; it is noted that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by paying, within 30 days, an amount equal to half of the imposed sanction;

ORDERS

the aforementioned Company, in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of euro 842,062.00 (eight hundred forty-two thousand sixty-two/00), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with Article 27 of Law No. 689/1981;

DISPOSES

as an accessory sanction, pursuant to Article 166, paragraph 7, of the Code and Article 16 of the Guarantor's Regulation No. 1/2019, the publication on the Guarantor's website of this provision and, pursuant to Article 17 of the Guarantor's Regulation No. 1/2019, the annotation in the internal register of the Authority, provided for by Article 57, paragraph 1, letter u) of the Regulation, of the violations and the measures adopted.

Pursuant to Article 78 of Regulation (EU) 2016/679, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be filed with the ordinary judicial authority, with a petition submitted to the ordinary court of the place where the data controller resides, or, alternatively, to the court of the place of residence of the data subject, within thirty days from the date of communication of this provision, or sixty days if the appellant resides abroad.

Rome, September 12, 2024

THE PRESIDENT

Stanzione

THE RAPPORTEUR

Ghiglia
THE SECRETARY GENERAL
Mattei

1) In this regard, the Guarantor, in provision No. 192 of May 12, 2021 (web doc No. 9670025, at www.gpdp.it) deemed the production of records, extracted from the management software of the companies, attesting to the registration and valuation of consent, the date and time when it was provided, with evidence of the individual flags set by the data subjects through point-and-click methods, to be suitable for evidential purposes; furthermore, in order to ensure a greater degree of certainty regarding the genuineness of the expression of consent, the Guarantor has repeatedly referred to the practice of sending a confirmation message to the address indicated during registration (see, by way of example, provision No. 429 of December 15, 2022, cited).